

HINES, et al v. UNITED PARCEL SERVICE, INC.

23CV46772

**MOTION TO COMPEL ARBITRATION
OF ALL CLAIMS**

Defendant moves for an order compelling all claims to arbitration and dismissing this lawsuit. Defendant makes this Motion under the Federal Arbitration Act ("FAA") and the terms of the arbitration agreements that UPS and plaintiffs entered cover all claims asserted in the operative complaint.

CALAVERAS COUNTY SUPERIOR COURT LOCAL COURT RULE 3.3.7 effective:
JANUARY 1, 2018)

3.3.7 Tentative Rulings (Repealed Eff. 7/1/06; As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court. [Emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

The Motion is denied without prejudice to renew a motion complying with Rule 3.3.7.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.